

School Portal System Purchase and Use Agreement

****Draft for review and signature****

This agreement is between:

****Service Provider:**** _____

****School / Customer:**** _____

****School Address:**** _____

****Authorized School Administrator:**** _____

****Agreement Date:**** _____ ****Effective Date:**** _____

1. Purpose

The Service Provider will provide the school management portal and related services to the School. The School agrees to use the system according to this agreement, the portal rules, and applicable law.

2. Subscription Plan and Price

****Selected plan:**** Free / Basic / Professional / Enterprise

****Billing cycle:**** Monthly / Quarterly / Annually

****Subscription price:**** _____ ****Currency:**** _____

****Start date:**** _____ ****End date:**** _____

****Payment method:**** M-Pesa / Bank Transfer / Credit Card / Cheque

The plan limits, included features, student limits, teacher limits, class limits, and payment dates must be confirmed in writing before activation.

3. Payment Terms

1. The School must pay the agreed subscription amount by the stated due date.
2. The Service Provider will issue a receipt or payment confirmation.
3. Failed, overdue, or incomplete payments may result in a reminder, suspension, or expiry after notice.
4. Any discount or special price must be written in this agreement or an approved quotation.
5. The School must keep payment receipts and transaction references.
6. The Service Provider must not request a user's password, M-Pesa PIN, card PIN, or other confidential credential.

4. License and Authorized Use

1. The School receives a limited, non-exclusive, non-transferable right to use the portal during the active subscription period.
2. The School may use the system only for its authorized school operations.
3. The School must not resell, sublicense, copy, rent, or share the system with another school without written permission.
4. The School is responsible for ensuring that its staff use the correct portal roles.

5. School Administrator Responsibilities

The School Administrator must:

- Provide accurate school and contact information.
- Keep administrator credentials secure.
- Create accounts only for authorized users.
- Remove or report accounts for people who leave the School.
- Ensure staff follow role permissions and data privacy rules.
- Review important records before saving changes.
- Report suspected security problems promptly.
- Ensure subscription payments are made on time.

6. Support Included in the Subscription

Unless a quotation says otherwise, normal support includes:

- Login and password assistance
- Basic portal training
- Remote troubleshooting
- Fixing confirmed system errors
- Payment-status checking
- Report and printing assistance
- Routine maintenance and updates included in the plan

7. Chargeable Services

The following may require a separate quotation and payment:

- On-site visits or travel to the School
- On-site training
- Local computer, printer, internet, or network repairs
- Data migration from another system
- Custom features, reports, or integrations
- Special hardware installation
- Emergency or after-hours support
- Work outside the subscription plan

- Additional students, teachers, storage, schools, or features above plan limits

The Service Provider must obtain the School's written approval before starting chargeable work. The quotation must state the work, price, currency, expected time, travel costs, and payment terms.

8. On-Site Support

1. Remote support should be attempted where practical before an on-site visit.
2. An on-site visit is not automatically chargeable when the visit is required to correct a confirmed fault caused by the Service Provider.
3. Travel, accommodation, or service charges may apply when the visit is requested by the School or concerns the School's local equipment or network.
4. The School must approve the quotation before staff travel to the School.
5. The Service Provider will provide a service report after the visit.

9. Data and Privacy

1. The School owns the school data it enters into the portal.
2. The Service Provider may process data only to provide, secure, maintain, and support the system.
3. The School must collect and use student, parent, and staff information lawfully.
4. Users must access only records needed for their assigned duties.
5. The School must notify the Service Provider of suspected unauthorized access or data loss.
6. Data export or deletion after termination will be handled according to the agreed process and applicable law.

10. Security and Prohibited Activities

The School and its users must not:

- Reverse engineer, decompile, disassemble, copy, or modify the portal software.
- Bypass authentication, role restrictions, payment controls, security settings, or audit logging.
- Scan, probe, attack, or test the system offensively without written authorization.
- Copy private APIs, database structures, credentials, or confidential data.
- Share passwords, M-Pesa PINs, card PINs, or authentication tokens.
- Use the portal to upload unlawful, harmful, or unauthorized content.

Authorized security concerns may be reported to the Service Provider's technical support contact.

11. Availability and Maintenance

The Service Provider will make reasonable efforts to keep the system available. Planned maintenance, internet outages, third-party service failures, force majeure, or events outside the Service Provider's control may affect availability. The Service Provider should communicate significant planned maintenance where practical.

12. Renewal, Suspension, and Cancellation

1. Renewal follows the selected billing cycle unless the parties agree otherwise in writing.
2. The School may request cancellation in writing before the next billing date.
3. The Service Provider may suspend access for non-payment, serious security risk, unlawful use, or material breach after reasonable notice where practical.
4. Cancellation does not remove unpaid amounts already due.
5. On termination, the School must stop using the portal and return or delete confidential provider materials as requested.

13. Ownership and Confidentiality

The Service Provider retains ownership of the portal software, documentation, designs, and underlying technology. The School retains ownership of its submitted school data. Both parties must protect confidential information received from the other party.

14. Changes to Terms

Changes to the plan, price, features, or support terms must be communicated in writing. Material changes should be accepted by the authorized School Administrator before taking effect where required by the parties' arrangement.

15. Support Contacts

General support contact: _____

Technical support email / phone: _____

Finance contact: _____

Emergency contact: _____

16. Agreement and Signatures

By signing below, both parties confirm that they have read and understood this agreement, the selected subscription plan, the payment terms, the support terms, and the portal security rules.

For the School

Name: _____

Title: School Administrator / Authorized Representative

Signature: _____

Date: _____

School stamp: _____

For the Service Provider

Name: _____

****Title:**** _____

****Signature:**** _____

****Date:**** _____

****Company stamp:****

Important Review Notice

This is a draft business agreement template. The School and Service Provider should review it with a qualified legal or business adviser and add the correct company details, prices, taxes, governing law, refund rules, service levels, and official contact information before signing.